

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT IN AND FOR
HILLSBOROUGH COUNTY**

FLORIDA FAMILY LAW DIVISION A

CASE NO.: 24-DR-001150

SARAH HANSON,

Petitioner,

v.

CHRISTOPHER HANSON,

Respondent. _____/

**RESPONDENT’S MOTION TO VACATE, FOR REHEARING OF ORDER DENYING MOTION
TO DISQUALIFY ALL 13TH CIRCUIT JUDGES, AND FOR ENTRY OF AN ORDER GRANTING
DISQUALIFICATION FOR ALL 13TH CIRCUIT JUDGES**

Respondent, Christopher Hanson, pro se, pursuant to Florida Rule of General Practice and Judicial Administration 2.330 and Florida Rule of Civil Procedure 1.530, moves for rehearing of this Court’s “Order Denying Respondent’s Notice of Related Cases and Motion to Disqualify All 13th Circuit Court Judges,” and states:

I. INTRODUCTION AND NARROW BASIS FOR REHEARING

1. On January 8, 2026, this Court entered an order denying Respondent’s Notice of Related Cases and Motion to Disqualify All 13th Circuit Court Judges, citing Rule 2.330(i) and finding the motion “legally insufficient as a matter of law.”
2. The order addresses the motion **only** as a “successive” motion to disqualify under Rule 2.330(i) in this case, following the prior disqualification of Judge Ayers. It does **not** address the separate and independent due process and conflict-of-interest issue created by the fact that Judge Matthew Felix, is a **named defendant** in Respondent’s related mandamus/public records action, Case No. 25-CA-10255, arising directly from this same family law matter.
3. Rehearing is warranted because the Court’s order does not consider or decide: (a) whether a judge may preside over a litigant’s case while simultaneously being sued

by that same litigant in closely related litigation; (b) the constitutional due process requirement of an impartial tribunal under *In re Murchison*, 349 U.S. 133 (1955), and *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009); (c) the “well-grounded fear” standard articulated by the Florida Supreme Court in *Livingston v. State*, 441 So. 2d 1083 (Fla. 1983); and (d) the appearance-of-impropriety standard codified in Canon 3E(1) of the Florida Code of Judicial Conduct and repeatedly applied in Florida disqualification cases.

4. Respondent does **not** challenge the Court’s interpretation of Rule 2.330(i) as applied to routine successive bias motions. Rather, Respondent seeks rehearing because the Court did not address the **separate structural conflict** and due process problem arising from the Judge Felix’s status as a party-defendant in ongoing, closely related litigation brought by Respondent.

II. FACTS RELEVANT TO DISQUALIFICATION THAT WERE NOT ADDRESSED

5. As set forth in Respondent’s Notice of Related Cases and Verified Motion to Disqualify, Respondent has filed a mandamus and declaratory relief action, Case No. 25-CA-010255, against, inter alia, the Thirteenth Judicial Circuit Court, Chief Judge Sabella, Judge Kelly Ayers, Judge Matthew Felix, the Clerk, and court administration, arising out of extreme bias and misconduct including intentional concealment of records, constitutional transparency violations, and systemic protection of judicial misconduct tied directly to this family law case.
6. In that action, Judge Felix is expressly named as a defendant based on his role in handling filings, emergency motions, recusal issues, and related matters in this very family law case (24-DR-001150), including matters described in the attached mandamus pleadings and incorporated exhibits.
7. Respondent’s motion to disqualify in this family case, therefore, is not based merely on generic allegations of bias or dissatisfaction with rulings, but on a live, adversarial relationship in which Respondent is actively suing Judge Felix for

constitutional and administrative violations connected to this same underlying dispute.

8. The January 8, 2026 order denying disqualification does not address this adversarial posture, does not mention Judge Felix's status as a defendant in Case No. 25-CA-010255, and does not analyze whether due process permits Judge Felix to continue presiding over Respondent's case under such circumstances.

III. LEGAL STANDARD: WELL-GROUNDED FEAR AND APPEARANCE OF IMPROPRIETY

9. Florida law does not require proof of actual bias; it requires that the motion's allegations, taken as true, show a reasonably prudent person would have a well-founded fear he will not receive a fair and impartial hearing. *Livingston v. State*, 441 So. 2d 1083, 1084–85 (Fla. 1983) (reversing where long-standing conflicts between judge and defense counsel created a reasonable fear of unfairness).
10. The Florida Supreme Court has emphasized that “every litigant is entitled to nothing less than the cold neutrality of an impartial judge,” and that courts must “scrupulously guard this right and refrain from attempting to exercise jurisdiction in any matter where [a judge's] qualification to do so is seriously brought in question.” *Crosby v. State*, 97 So. 2d 181, 185 (Fla. 1957). The test focuses on the litigant's reasonable fear, not the judge's subjective confidence in his own impartiality.
11. Canon 3E(1) of the Florida Code of Judicial Conduct requires disqualification whenever “the judge's impartiality might reasonably be questioned,” including where the judge has a personal interest or is involved in related disputes that create an appearance of impropriety.
12. Florida appellate courts consistently apply this objective standard: if the facts alleged, taken as true, would cause a reasonably prudent person to fear he will not receive a fair trial, disqualification is required. *Nunez v. Backman*, 645 So. 2d 1063, 1064 (Fla. 4th DCA 1994) (granting writ of prohibition where judge's conduct created a reasonable fear of prejudice).

13. These authorities exist **independently** of the successive-motion limitation in Rule 2.330(i). Rule 2.330(i) cannot be read to negate constitutional due process or to authorize a judge to sit in a case where his own neutrality is reasonably in doubt because he is being sued by a party in closely related litigation.

IV. DUE PROCESS AND STRUCTURAL BIAS: A JUDGE CANNOT SIT IN A CASE WHILE BEING SUED BY THE LITIGANT IN RELATED LITIGATION

14. The United States Supreme Court has made clear that due process requires “a fair trial in a fair tribunal,” and that our system “has always endeavored to prevent even the probability of unfairness.” *In re Murchison*, 349 U.S. 133, 136 (1955).

15. In *Murchison*, the Court held that “no man can be a judge in his own case and no man is permitted to try cases where he has an interest in the outcome,” noting that “[c]ircumstances and relationships must be considered” in determining whether the probability of bias is constitutionally intolerable.

16. In *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009), the Court held that due process requires recusal when “the probability of actual bias on the part of the judge or decisionmaker is too high to be constitutionally tolerable,” even absent proof of actual bias. The test is objective and asks whether, under the extreme facts, a reasonable observer would question the judge’s ability to remain neutral.

17. Here, Respondent is actively suing Judge Felix in Case No. 25-CA-010255, alleging constitutional violations, concealment of records, and systemic protectionism directly connected to this family case. Judge Felix’s conduct in this very case is part of the factual predicate of that suit. The intertwined nature of the two cases creates at least an appearance that Judge Felix has a personal and institutional stake in how Respondent and his claims are viewed.

18. It’s impossible to consider Judge Felix’s continuing involvement in the case as consistent with due process because Judge Felix’s interest in the present litigation involves ethical concerns. After all of the bias and corruption Respondent

experienced to date, it's unreasonable to allow Judge Felix to preside over litigation where his own bias is a critical fact at issue. This is precisely the type of "circumstances and relationships" that *Murchison* and *Caperton* identify as problematic: the judge is not a neutral stranger to the litigant, but a named defendant whose own conduct is under attack in closely related proceedings.

19. Under these authorities, the question is not whether the Judge Felix believes he "can be fair," but whether an objectively reasonable litigant in Respondent's position—suing the judge and the circuit for systemic misconduct tied to this very case—would have a well-grounded fear that he cannot receive the "cold neutrality of an impartial judge." *Crosby*, 97 So. 2d at 185; *Livingston*, 441 So. 2d at 1084–85.
20. The existence of an adversarial lawsuit between Respondent and Judge Felix, arising from the same underlying events and administrative handling of this family matter, creates at least an appearance of impropriety and a constitutionally significant probability of bias. Under Canon 3E(1), Florida case law, and federal due process, disqualification is required even if Rule 2.330(i) would otherwise limit successive motions in purely intra-case contexts.

V. RULE 2.330(i) DOES NOT RESOLVE, AND CANNOT OVERRIDE, THE CONSTITUTIONAL CONFLICT

21. The order under rehearing applied Rule 2.330(i) on the theory that once one judge (Ayers) has been disqualified, a successor judge cannot be disqualified on a successive motion by the same party unless the successor judge admits he is not impartial.
22. That provision addresses repetitive, intra-case disqualification attempts based on the same type of bias allegations. It does **not** address, and cannot cure, a **later-arising structural conflict** in which the successor judge becomes a party-defendant in separate but closely related litigation brought by the same litigant, grounded in overlapping facts.

23. Nothing in Rule 2.330(i) purports to authorize a judge to preside in a case where due process is violated under *Murchison* and *Caperton*, or where the Canon 3E(1) appearance-of-impropriety standard is triggered by an adversarial relationship between judge and litigant.
24. To the extent there is any tension between Rule 2.330(i) and constitutional due process, the Constitution and the Florida Supreme Court's due-process-based recusal standards necessarily control. *Livingston* makes clear that the test is the litigant's well-grounded fear, not a mechanical rule that allows a judge to insulate himself by self-certifying impartiality.
25. Because the January 8, 2026 order does not address this conflict at all—and treats the motion as if it were simply a barred “successive” challenge to a neutral successor judge, rather than a challenge to a judge who is an active party-defendant in related litigation—rehearing is necessary so the Court can squarely confront and decide the constitutional question.

VI. REQUEST FOR RELIEF

WHEREFORE, Respondent respectfully requests that the Court:

- A. Vacate and grant rehearing of the January 8, 2026 “Order Denying Respondent’s Notice of Related Cases and Motion to Disqualify All 13th Circuit Court Judges”;
- B. Upon rehearing, find that Respondent’s motion is legally sufficient under *Livingston*, *Crosby*, *Nunez*, Canon 3E(1), and the due process standards of *Murchison* and *Caperton*;
- C. Disqualify Judge Felix and all other 13th Circuit judges from further participation in this case and request reassignment to a neutral judge outside the Thirteenth Judicial Circuit, or otherwise in a manner that eliminates the structural conflict created by the Judge Felix’s party status in Case No. 25-CA-010255; and
- D. Grant such other and further relief as is just and proper to preserve the appearance and reality of judicial neutrality and Respondent’s due process rights.

Verification: Under penalties of perjury, I, Christopher Hanson, the Respondent herein, declare and certify that I have read the foregoing, and that the facts stated herein are true and correct to the best of my knowledge, information, and belief.

/s/ Christopher Hanson

Christopher Hanson

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was served via the Florida Courts E-Filing Portal on all parties registered for e-service in this case on this 12th day of January 2026.

Christopher Hanson

Christopher Hanson